ACME ENTERPRISE SOLUTIONS

MASTER SERVICES AGREEMENT (MSA)

This Master Services Agreement ('Agreement') is entered into as of October 1, 2026 ('Effective Date'), by and between **Acme Cloud Solutions Inc.**, a Delaware corporation having its principal office at 100 Innovation Way, Suite 400, Austin, TX 78701 ('Provider'), and **Apex Global Logistics LLC**, a California limited liability company ('Customer').

1. PURPOSE AND SCOPE OF SERVICES

Provider agrees to deliver intelligent document processing, cloud data ingestion, and retrieval-augmented generation infrastructure as described in Statement of Work #101 (SOW-101). Customer shall have a non-exclusive, worldwide license to access Provider's proprietary serverless analytics platforms during the term of this Agreement.

2. TERM AND RENEWAL

The initial term of this Agreement shall commence on the Effective Date and continue for a period of twenty-four (24) months. Thereafter, this Agreement shall automatically renew for successive twelve (12) month periods unless either party provides written notice of non-renewal at least sixty (60) days prior to the expiration of the then-current term.

SERVICE LEVEL AGREEMENT & UPTIME GUARANTEES

3. SERVICE LEVEL COMMITMENTS (SLA)

Provider guarantees that the Intelligent Document Processing Pipeline and Query API endpoints will maintain a Monthly Uptime Percentage of at least **99.9%** during each billing cycle, excluding Scheduled Maintenance.

Monthly Uptime Percentage	Service Credit Percentage	Response Time Target
>= 99.9%	0% (Normal Operations)	< 200 ms latency
99.0% to 99.89%	10% of monthly fee	< 500 ms latency
95.0% to 98.99%	25% of monthly fee	< 1,200 ms latency
< 95.0%	50% of monthly fee	Immediate escalation

4. SCHEDULED MAINTENANCE WINDOWS

Provider may perform routine maintenance during designated maintenance windows on Sundays between 02:00 UTC and 06:00 UTC. Provider will notify Customer at least forty-eight (48) hours in advance of any maintenance expected to exceed thirty (30) minutes.

PRICING, FEES & PAYMENT SCHEDULE

5. FEES AND INVOICING

Customer shall pay a recurring base platform fee of **$25,000 USD per month** for up to 500,000 document pages processed. Excess document pages will be billed at an overage rate of **$0.015 per page**. All fees are exclusive of applicable taxes.

6. PAYMENT TERMS AND LATE FEES

Invoices are issued on the first business day of each calendar month. Payment terms are strictly **Net 30 days** from the date of invoice. Late payments shall accrue interest at the rate of **1.5% per month** (or the maximum permitted by law, whichever is lower) on all past-due balances. In the event of non-payment exceeding 45 days, Provider reserves the right to suspend API access upon five (5) days written notice.

LIABILITY, TERMINATION & SIGNATURES

7. LIMITATION OF LIABILITY

TO THE MAXIMUM EXTENT PERMITTED BY LAW, IN NO EVENT SHALL EITHER PARTY'S AGGREGATE LIABILITY ARISING OUT OF OR RELATED TO THIS AGREEMENT EXCEED **$500,000 USD (FIVE HUNDRED THOUSAND DOLLARS)**. NEITHER PARTY SHALL BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, INCLUDING LOSS OF PROFITS, DATA LOSS, OR BUSINESS INTERRUPTION, REGARDLESS OF THE THEORY OF LIABILITY.

8. TERMINATION FOR CAUSE AND CONVENIENCE

Either party may terminate this Agreement for convenience upon providing at least **thirty (30) days prior written notice** to the other party. Either party may terminate immediately upon written notice if the other party materially breaches this Agreement and fails to cure such breach within fifteen (15) days of receiving notice.

9. GOVERNING LAW AND VENUE

This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to its conflict of law principles. Any dispute shall be resolved exclusively in the state or federal courts located in New Castle County, Delaware.

For Acme Cloud Solutions Inc.:

Signature: _____

Name: Sarah Jenkins

Title: Chief Operating Officer

Date: October 1, 2026

For Apex Global Logistics LLC:

Signature: _____

Name: Marcus Vance

Title: VP of Technology

Date: October 1, 2026